

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Rasenberger	Team: Squad #07	CCRB Case #: 202101027	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/05/2021 8:17 PM	Location of Incident: East 53rd Street and Lenox Road	18 Mo. SOL 8/5/2022	Precinct: 67		
Date/Time CV Reported Fri, 02/05/2021 9:39 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/16/2021 11:10 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Michael Lodato	00000	929441	PBBS SU
2. POM George Antzoulis	20684	962929	063 PCT
3. POM Tomas Krohn	26766	965247	GVSD Z1
4. POM Andreas Sargent	24928	943785	071 PCT
5. POM Junaid Saeed	07200	963733	069 PCT
6. DTS Alvaro Contreras	06960	941586	PBBS SU

Officer(s)	Allegation	Investigator Recommendation
A . POM Junaid Saeed	Abuse: Police Officer Junaid Saeed searched § 87(2)(b) [REDACTED]	A . Exonerated
B . DTS Alvaro Contreras	Abuse: Detective Alvaro Contreras searched § 87(2)(b) [REDACTED]	B . Exonerated
C . POM Junaid Saeed	Abuse: Police Officer Junaid Saeed searched the vehicle in which § 87(2)(b) [REDACTED] was an occupant.	C . Exonerated
D . DTS Alvaro Contreras	Abuse: Detective Alvaro Contreras searched the vehicle in which § 87(2)(b) [REDACTED] was an occupant.	D . Exonerated
E . POM Andreas Sargent	Abuse: Police Officer Andreas Sargent searched the vehicle in which § 87(2)(b) [REDACTED] was an occupant.	E . Exonerated
F . POM George Antzoulis	Abuse: Police Officer George Antzoulis searched the vehicle in which § 87(2)(b) [REDACTED] was an occupant.	F . Exonerated
G . POM Tomas Krohn	Abuse: Police Officer Tomas Krohn searched the vehicle in which § 87(2)(b) [REDACTED] was an occupant.	G . Exonerated
H . LT Michael Lodato	Abuse: Lieutenant Michael Lodato failed to provide § 87(2)(b) [REDACTED] with a business card.	H . Substantiated

Case Summary

On February 16th, 2021, the CCRB received log 2021-3014 from the Internal Affairs Bureau Command Center, which contained the following complaint on behalf of § 87(2)(b) [BR 1].

On the evening of February 5th, 2021, § 87(2)(b) and his girlfriend, § 87(2)(b) were in § 87(2)(b)'s vehicle, double parked at the intersection of 53rd Street and Lenox Road in Brooklyn. At about 8:20 p.m., Lieutenant Michael Lodato and Detective Alvaro Contreras of the Patrol Borough Brooklyn South Specialized Unit, Police Officer Tomas Krohn of the Gun Violence Suppression Division, Police Officer George Antzoulis of the 63rd Precinct, Police Officer Andreas Sargent of the 71st Precinct, and Police Officer Junaid Saeed of the 69th Precinct stopped § 87(2)(b) and § 87(2)(b). After PO Saeed observed marijuana in plain view inside of § 87(2)(b)'s vehicle, both § 87(2)(b) and § 87(2)(b) were removed from the vehicle. PO Saeed searched § 87(2)(b)'s person while DTS Contreras searched § 87(2)(b)'s person [**Allegations A and B: Abuse of Authority – Search, § 87(2)(g)**]. DTS Contreras and Officers Sargent, Antzoulis, Krohn, and PO Saeed then searched § 87(2)(b)'s vehicle [**Allegations C - G: Abuse of Authority – Vehicle Search, § 87(2)(g)**]. Lieutenant Lodato acknowledged that neither he nor any of the officers on the scene provided a Right to Know Act business card to either § 87(2)(b) or § 87(2)(b) at the conclusion of the encounter [**Allegation H: Abuse of Authority – Failure to Provide RTKA card, § 87(2)(g)**].

The CCRB is in possession of six BWC videos of the incident [BR 2].

Findings and Recommendations

Allegation A: Abuse of Authority - Police Officer Junaid Saeed searched § 87(2)(b)
Allegation B: Abuse of Authority – Detective Alvaro Contreras searched § 87(2)(b)
Allegation C: Abuse of Authority - Police Officer Junaid Saeed searched the vehicle in which § 87(2)(b) was an occupant.
Allegation D: Abuse of Authority – Detective Alvaro Contreras searched the vehicle in which § 87(2)(b) was an occupant.
Allegation E: Abuse of Authority – Police Officer Andreas Sargent searched the vehicle in which § 87(2)(b) was an occupant.
Allegation F: Abuse of Authority – Police Officer George Antzoulis searched the vehicle in which § 87(2)(b) was an occupant.
Allegation G: Abuse of Authority – Police Officer Thomas Krohn searched the vehicle in which § 87(2)(b) was an occupant.
Allegation H: Abuse of Authority – Lieutenant Michael Lodato failed to provide § 87(2)(b) with a business card.

On the evening of February 5th, 2021, § 87(2)(b)'s vehicle was double parked at the intersection of 53rd Street and Lenox Road in Brooklyn. § 87(2)(b) stated during his CCRB interview [BR 3] that he rolled a marijuana cigar as he and his girlfriend, § 87(2)(b) sat in the vehicle. At about 8:20 p.m., Lt. Lodato, PO Krohn, PO Antzoulis, DTS Contreras, PO Sargent, and PO Saeed – all assigned to a specialized enforcement detail -- stopped § 87(2)(b) and § 87(2)(b). At this time, § 87(2)(b) acknowledged, his clothing was covered with marijuana crumbs that had fallen as he was rolling the marijuana cigar. In his body-worn camera footage, at 1:10, [BR 4], PO Saeed is heard explaining to § 87(2)(b) that the officers stopped him because his vehicle was double-parked. PO Saeed then states that he can see marijuana in plain view inside of the vehicle. He shines his flashlight at a jar in § 87(2)(b)'s lap that appears to contain marijuana. (The contents of the jar are clearly captured at 02:25 in PO Saeed's BWC footage.) PO

Saeed is then seen removing § 87(2)(b) from his vehicle and searching § 87(2)(b)'s pockets. At 01:36 in his own BWC video [BR 5], DTS Contreras is seen removing § 87(2)(b) from the vehicle. He proceeds to search her jacket pockets. At 02:17 and 02:23 in their respective BWC videos, DTS Contreras and PO Saeed are seen entering, and then searching, § 87(2)(b)'s vehicle. At 02:31 in PO Sargent's BWC video [BR 6], he is seen searching the rear of § 87(2)(b)'s vehicle. At 04:02 and 04:32 in their respective BWC videos [BR 7 and 8], PO Krohn and PO Antzoulis are seen searching the trunk of § 87(2)(b)'s vehicle.

Body-worn camera footage shows that none of the officers offered a Right to Know Act business card to either § 87(2)(b) or § 87(2)(b). Lt. Lodato acknowledged this during his CCRB interview [BR 9]. According to Lt. Lodato, he and his officers were not required to offer a business card because the encounter was a "level-4" or "probable cause stop."

In *People v. Mills*, the court ruled that after an officer stopped the defendant's vehicle and observed "baggies of marijuana" in plain view within the passenger compartment, the officer had probable cause to search the defendant's vehicle. *People v. Mills*, 93 A.D.3d 1198 [BR 10].

Under Administrative Guide § 304-11, officers must issue a business card upon the conclusion of a law enforcement activity – including a stop or vehicle search -- except in cases when a summons is issued or an arrest is made, or exigent circumstances are present (i.e. physical resistance, flight, imminent danger of physical injury or damage to property or other factors make such procedure impractical). NYPD Administrative Guide Procedure 304-11 [BR 11].

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which either § 87(2)(b) or § 87(2)(b) have been parties [BR 12 and 13].
- PO Krohn has been a member of service for three years, over which time he has been the subject of two complaints and four allegations, none of which have been substantiated. § 87(2)(g)
- Lt. Lodato has been a member of service for nineteen years, over which time he has been the subject of four complaints and eight allegations, none of which were substantiated. § 87(2)(g)
- PO Antzoulis has been a member of service for four years, over which time he has been the subject of one complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Sargent has been a member of service for fourteen years, over which time he has been

the subject of five complaints and 13 allegations, two of which were substantiated. ■■■

§ 87(2)(g) ■■■

- Case 201703055 involved allegations of force – gun pointed and abuse – stop, both of which were substantiated. The NYPD did not impose a penalty.
- PO Saeed has been a member of service for four years, over which time he has been the subject of four cases and twenty one allegations, one of which was substantiated. ■■■

§ 87(2)(g) ■■■

- Case 201808921 involves an allegation of seizure of property, which was substantiated, and resulted in a penalty of formalized training.
- Case 202000618 -- which involves allegations of failure to provide RTKA card, frisk, search, strip-search, and threat of arrest – is still under investigation to date.
- DTS Contreras has been a member of service for fifteen years, over which time he has been the subject of nine complaints and 35 allegations, none of which have been substantiated.

§ 87(2)(g) ■■■

- Case 202006684 – which involves allegations of failure to provide RTKA card, frisk, search, abuse – other, threat of arrest, vehicle search, vehicle stop, and untruthful statement – remains under investigation to date.
- The CCRB is in receipt of the summaries of employment history for all officers involved in this case [BR 17].

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] ■■■
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- According to the New York City Comptroller's Officer, there are no notices of claim in regards to this incident [BR 16].

Squad: _____ 7 _____

Investigator:	<u>Will Rasenberger</u>	<u>Inv. Will Rasenberger</u>	<u>10/28/2021</u>
	Signature	Print Title & Name	Date

		Manager Vanessa Rosen	November 17, 2021
Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date